

26SMCV00232 26SMCV00232

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-03

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The court has seen the opposition by defendant. That opposition refers to a case pending before Judge Swift, also apparently involving the garage. Judge Swift seems to have made orders in that case. The court will inquire if that is true and, if it is, why this was not brought to the court's attention at the prior hearing. Assuming no satisfactory response, the court is inclined to DENY the motion in its entirety. This started as a request for a TRO. A moving party seeking that kind of relief has a duty to full candor to the court.

The fact that there is another case pending involving the garage is plainly relevant to this hearing, and by failing to disclose it in the moving papers, the court lacks the confidence that it is getting the full picture from plaintiff. That is not to say that a preliminary injunction will be denied, it is just to say that this needs to be done properly or not at all, and the court needs to know that everyone has given the court all of the information it needs.